

25STCV15199 25STCV15199

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Case Number: 25STCV15199 Hearing Date: September 14, 2026 Dept: 514

Aron v. Skousen

25STCV15199

Plaintiff's Motion to Seal

Tentative Ruling

The motion to seal is granted,

Background

This action arises from a dispute over real property located at 10250 West Sunset Boulevard in Los Angeles (the "Property").

On May 23, 2025, Marc Aron ("Aron") filed the complaint in this action against Sara Skousen, trustee of the Azria Family Trust dated August 11, 1995, as amended; Lubov Azria, former trustee of the Azria Family Trust dated August 11, 1995, as amended; and Does 1 through 100, asserting causes of action for (1) breach of contract, (2) declaratory relief, and (3) injunctive relief.

On December 16, 2025, Michael Henri Azria and Joyce Judith Trojanowski, successor co-trustees of the Azria Family Trust, dated August 11, 1995, as amended and restated December 28, 2017 (collectively "Trustees") filed an answer to the complaint.

Also on December 16, 2025, Trustees filed a cross-complaint against Aron; Reserve Escrow, Inc.; and Roes 1 through 20, asserting causes of action for breach of contract and declaratory relief.

Aron filed an answer to the cross-complaint on January 22, 2026.

Of particular importance to the pending motion, on May 29, 2025, Aron filed a notice of recording of notice of pendency of action (a lis pendens). The notice was amended on June 6, 2025.

On September 23, 2025, Trustees – who had not yet been named as defendants and had not previously appeared – filed a motion as nonparties to expunge the lis pendens. On November 20, 2025, the Court denied the Trustees' motion.

On July 15, 2026, Trustees filed a renewed motion to expunge the lis pendens. The hearing on that motion was initially set for August 25 and was continued to September 28.

Currently before the Court and set for hearing on September 14, 2026, is a motion filed by Aron on July 27, 2026, to seal certain portions of records submitted by Trustees in connection with their motion to expunge the lis pendens. Trustees filed a response on August 31, and Aron filed a reply on September 4.

Trial is set for January 11, 2027.

Legal Standard

"[T]he First Amendment provides a right of [public] access to ordinary civil trials and proceedings." (NBC Subsidiary (KNBC-TV), Inc. v. Super. Ct. (1999) 20 Cal.4th 1178, 1212.) "[C]onstitutional standards governing closure of trial proceedings apply in the civil setting." (Ibid.) Those standards are embodied in California Rules of Court, rules 2.550 and 2.551.

"Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c). "A record must not be filed

under seal without a court order.” (Cal. Rules of Court, rule 2.551(a).) “The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Ibid.)

California Rules of Court, rule 2.550(d) sets forth the basic standard for an order permitting the filing of documents under seal:

“The court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.”

(Cal. Rules of Court, rule 2.550(d).)

Rule 2.550(e) requires that a sealing order must contain certain findings:

“An order sealing the record must: (A) Specifically state the facts that support the findings; and (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file.”

(Cal. Rules of Court, rule 2.550(e)(1).

A motion or application to file under seal must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. Rules of Court, rule 2.551(b)(1).) “A request to seal a document must be filed publicly and separately from the object of the request. It must be supported by a factual declaration or affidavit explaining the particular needs of the case.” (In re Marriage of Lechowick (1998) 65 Cal.App.4th 1406, 1416.) “[T]he party seeking to seal documents, or maintain them under seal, must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.)

Discussion

Pursuant to California Rules of Court, rule 2.551(b)(3), Aron moves for an order keeping under seal the unredacted version of Trustees’ motion to expunge the lis pendens, the supporting memorandum, and supporting evidence.

The documents and information at issue relate to Aron’s confidential financial and personal records, including information regarding Aron’s net worth, assets, liquidity, and a prospective IPO. (Hami Decl., ¶¶ 16-18.)

Although the Court must make an independent determination of whether the requirements for sealing are met, the Court notes that the Trustees do not oppose the motion to seal. Trustees “oppose any result that prevents this Court from reviewing the records” (Response, at pp. 2, 4), but no one is suggesting such a result. If the motion to seal is granted, the Court will review the sealed records but they will not be in the public file. If the motion to seal is denied, Aron will be given a choice: he can withdraw his opposition and stipulate to the relief requested by Trustees (in which case the information at issue need not be placed in the public file), or he can stand on his opposition to the motion to expunge and accept that the records at issue will be placed in the public file. Contrary to Trustee’s suggestion, no one is giving Plaintiff “veto” power over evidence.

Trustees also request their own affirmative relief in their response to this motion: they ask the Court to advance the hearing on the motion to expunge. An opposition (or “response”) to a motion is not the proper place to seek affirmative relief. If Trustees seek to advance a hearing (or any other affirmative relief), they must file their own motion or application.

Turning now to the merits of Aron's motion, the Court has reviewed the evidence in the record and finds that Aron has made a sufficient showing for a sealing order. The Court finds that Aron has demonstrated that there is an overriding interest in protecting his financial privacy (and in protecting the confidentiality of information relating to a prospective IPO) that overrides the right of public access to the records at issue and supports sealing those records. Absent a sealing order, there is a substantial probability that the overriding interest will be prejudiced. The proposed sealing order is narrowly tailored, and there are no less restrictive means that would protect the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

The motion is granted.

Conclusion

The Court GRANTS the motion of Plaintiff Marc Aron to seal certain records.

The Court ORDERS that the unredacted version of Trustees' motion to expunge the lis pendens, supporting memorandum, and supporting evidence is to be placed under seal. The redacted version is to remain in the public file.

Moving party is ordered to give notice.